

Analysis and Criticism of Nigeria's Economic and Political System

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ABSTRACT

The class role which the State plays in the capitalist society had been mostly captured by Marxists in their analysis of the State. Non-Marxists, like Anarchists, to a significant extent, also share in the harsh views. After almost two centuries that these views were canvassed and after a century of the practical implementation of these views or theories about the state, it becomes necessary to re-visit the theories and the critical views to see how relevant they are to modern bourgeois capitalist state in third world countries like Nigeria as constituted by the Tinubu State. This research work adopted the doctrinal method. It sought to capture the analysis of Marxism on the concept of the withering away of the State as presented originally by Marx and Engels through its implementation under Lenin and Stalin in Russia and adapt the principles to the analysis of the Nigerian bourgeois state under President Tinubu as a dictatorship of the bourgeoisie. It was found that the theories are applicable and that the State acts in the interest of the politically dominant class in society which in turn represents the interest of the economically dominant group in Nigeria.

KEYWORDS

Withering away of the State; the Tinubu State; Dictatorship of the Bourgeoisie; Military dictatorship and the Nigerian Left

Introduction

Nigeria is a capitalist state that purports to be a mixed economy. But its prognosis is essentially bourgeois. It was a British colony and at independence, the political parties that anchored the struggle were essentially bourgeois and the statesmen were regional petty-bourgeoisie (Ahmadu Bello, Awolowo, Azikwe, Tafawa Balewa and Aminu Kano). They were interested in political power for selfish interest and at best for the interest of their cronies and ethnic region. Ideological inclinations were not perceptible (except probably Aminu Kano) and the doctrine of non-alignment to the east or west later came to be its avowed policy. Capitalist accumulation of national resources (oil), corruption and ethnic rivalry bedraggled the state leading to a military take over and descent into civil war. The war was equally caused by economic considerations (oil resources) and ethnic suspicions and domination.

As rife as these considerations were, Marxist inclinations did not find any feet on the Nigerian soil. What might be considered the Nigerian left was sprinkled in University campuses and could only be expressed in articles, journals, newspapers and texts of the likes of (E. Madunagu and Eskor Toyo in Calabar, Patrick Wilmot and Bala Usman in Zaria, Bade Onimode in Ibadan, Odia Ofeimu in Benin, just to mention a few). No radical liberation movement sprouted out of the political barricade. Even the military regime of General Murtala Mohammed taunted in the University campuses (mainly in the north) as pro-Marxist was pseudo and was mainly a reactionary regime against the east (for the brutal murder of Alhaji Ahmadu Bello in the 'Igbo coup' of Major Kaduna Nzeogwu). Even the Biafra coup of cessation did not demonstrate Ojukwu as a Marxist experiment but, a suicidal act in Igbo-self-immolation even as it was engineered by the northern massacre of the Igbos as retaliation for the death of A. A. Bello.

All the Military and Civil regimes and coups of Buhari, Babangida, Abacha, Abdulsalami, Obasanjo did not postulate any Marxist tendency. Attention drawn to fringe political parties like the National Conscience Party formed by Gani Fawehinmi SAN as Marxist was faux pas. However, Gani can be linked with Dele Giwa, journalist who was accused by the Babangida regime of arms running and planning a socialist revolution. Nigerian state is very sensitive to subversive activities and literature. It kills them before they grow.

On the labour front, the case is slightly different with a flicker. The leaders of the Trade Union Congress of Nigeria had spoken of plans by certain persons to introduce the dictatorship of the proletariat after the achievement of independence (Ananaba, p. 190). It was reported in 1960 that a Nigerian trade union leader had concluded plans with certain foreign power by which the latter was to supply financial and material aids, including arms, to strengthen the struggles for the workers of Nigeria which struggles were to begin after independence and the aids were to be made available when certain countries had established diplomatic relations with Nigeria and opened embassies in Lagos (Ananaba, 191).

The colonial state intervention in the trade union movement was equally expressed in censorship. Though majority of Nigerian workers were oriented to the west and

were not interested in the cold war between the east and the west, Ananaba has pointed out that colonial policy and the general political climate were not conducive for an easy flow of Marxist philosophy. In fact soon after the announcement of the circulation of the 'Nigerian Worker', it came under censorship in 1944. The official statement of the censorship was that the magazine contained incorrect statements or allegation of facts and had repeatedly contained unfair and unjustified comments and that such statements, allegations and criticism were likely to excite disaffection and create or encourage discontent against government of Nigeria.

By 1963, the first annual conference of United Labour Congress had adopted a resolution to set up a political action committee whose primary objective was the propagation of a socialist welfare state and the furtherance of the workers' power and influence in the national politics of Nigeria (Ananaba, 237). The congress had also addressed and discussed a programme of trade union action which was to bring the World Trade Union Movement under the influence of international communism through various devices. Amongst the devices was the Leninist advocacy of use of all stratagems and artifices, adoption of illegal methods, occasional silence, occasional concealment of truth, for the sole purpose of penetrating the trade union, remaining therein and carrying out the communist assignment (Ananaba, p. 211). By the early 1940s a Marxist group or a communist front organization had been established of which Nduka Eze was a member. The group held the view that it must infiltrate important organizations, amongst them, political parties and trade unions (Ananaba, p. 143).

International affiliation was also discussed in two stages and in two conferences in Nigeria in Abeokuta and in Enugu. Among the Marxist group, the problem identified was the stumbling block which leading and wealthy nationalist constituted to proletarian revolution. The conference held in Abeokuta in 1954 was addressed by a guest from the British Communist Party on the theme of the stumbling block which nationalist capitalists constituted to the realization of the proletarian revolution. There was general agreement on objectives but there was a difference of opinion on strategy. The British guest advocated the use of force, revolutionary measure, to eliminate the capitalists and leading nationalists and quoted extensively from history to support his argument. There were supporters and those opposed.

The supporters saw it as the only way to hasten the achievement of independence and the introduction of a new social order in Nigeria. Those opposed saw it as a proposal of the British plot to annihilate Nigerian nationalists. They argued that if it was not, the advocate and guest speaker and his fellow communists in Britain should first eliminate men like Winston Churchill and other Tories to demonstrate sincerity. They concluded that if plotting to kill fellow Nigerians was the objective of the Marxist group, then they had reached a parting of ways (Ananaba, p. 145). A few months later, police swooped on the Marxist group, arrested them and subsequently prosecuted them for being in unlawful possession of seditious literature. They suspected their opponents in the group who did not see eye to eye with them after the Abeokuta

meeting. The break-up of the Marxist group was largely responsible for the perennial disunity in the Nigerian labour movement.

Statement of Problem

What is the ethical foundation of the State and law? Is the State an evil? In whose interest does it operate in society? Marxists and non-Marxists alike do not have kind definitions and explanations of the role the State and law play in the capitalist society. They argue that they pretend to be neutral but in the final analysis they operate on behalf of the economically and politically dominant class in society. As claimed by Kamenka (1972, pp. 175 – 176) Marxists treat the State and law as merely the organized power of one class for the suppression, oppression and domination of other classes. How factual is their claim, has it been reinforced by the unethical behaviour of the modern Nigerian bourgeois state under the President Tinubu Administration?

Research Scope

As Marx and Engels viewed their work as an ‘approach to further understanding’ (Makepeace, 1979 p. 40), ‘as no more than approximation, which would necessarily be modified in the light of future research’ (Law, 1978 p. 40) than a ‘dogmatic theory’ intended to substitute detailed work of empirical research (O’Malley, 1977 p. 45), the scope of this study is not to discover what Marx rather than Engels, Lenin etc, said (Miliband, 1979 p. 128) or what Marx and Engels rather than Lenin, etc said (Macfarlane, 1975 p. 167). But to have a coherent review of the application of Marxism in its original and later versions, at its philosophical and sociological levels, squared on contemporary ‘concrete political and socio-economic trends to provide a key for anticipating prospective development’ (Marcus, 1958 p. 9) and better basis for appraisal as to whether the principles of Marxism are applicable to the President Tinubu state in Nigeria as ‘nothing is so sacred that could not be out-stripped and improved’ upon (Stanisic, 1987 p. 11). As Stalin (cited in De George, 1967 p. 197 and Zinn, 1971 p. 36 -48) puts it, Marxism is not ‘a collection of dogmas which never change regardless of the changes in the condition of development of society... Marxism as a science cannot stand still...’ Thus to follow Corrigan and Sayer (1981, 21) closely, ‘we start, but do not stop, with Marx’s work’.

This is not to suggest, however, that Marx’s and Engel’s views shall be seen mainly ‘through the prism of later interpretations and adaptations’ (Miliband) for contrary to Lichtheim’s (cited in Mosse, 1977 p. 4) static analysis, Marx was not a man of one but all seasons. But that as far as possible the differences between the parental theory and later variations shall not receive undue magnifications thereby hindering basis of appraisal. Furthermore, Marxist views shall not be treated in isolation but compared and contrasted with those of non-Marxists contemporary or not. Within the mainstream of Marxism, a ‘mystifying catchword’ to O’Malley and a rouser of ‘complicated problems’ for Shapiro (1977, p. 95) it may be improper to presuppose that opinions always tally. Where they do not, they shall juxtaposed and stand taken where necessary.

Given the nature of the topic, it might be unrevealing to be purely restricted to politico-legal forms for they have their immanent historical origin in socio-economic forms and substance. It is thus suggested that the analysis shall be inexorably tied up with frequent perusal of the socio-economic foundations of given epochs upon which arises the 'legal and political superstructure and to which correspond definite forms of social consciousness' (Fried and Sanders, 1964 p. 29). Although Marxist theory on State and law was not comprehensive (Makepeace, p. 20) for the obvious fact that they are not distinct social phenomena (Ilumoka, 1986 p. 2) within the social bound, squatting outside of civil society – and not because they are just instruments of domination 'to be done away with, not developed and elaborated' upon as Dias (1980 p. 399) claims, or because they are of 'little account' as Harris (1980 p. 251) claims, or because Marx was an amateurish political thinker as Tucker (1969 p. 4) claims – its analysis of state and law is always subordinated to that of class struggle (Opolot, 1981 p. 112). To a significant extent, therefore, 'the approach to law has to be deduced from or subsumed under that to the State' (Makepeace). And as law is inalienable not only from its socio-economic but political background, it cannot be analyzed scientifically without studying it together with politics (Opolot, p. 101).

Research Method

This research was carried out through the doctrinal method. It reviewed secondary resource materials and engaged in qualitative analysis of the literature in books and related authoritative sources which were sought from the internet. More critically, it fused two recent articles of the authors in Synstos Journal of Law into a whole for a fuller and holistic understanding and appraisal of the nature and configuration of the Tinubu State in Nigeria.

Research Focus

The focus of this study was to use the theoretical principles of Marxism on state and law to confront the Nigerian state under President Bola Ahmed Tinubu and determine whether as a petro-bourgeois state, the government was being run as a 'dictatorship of the bourgeoisie'.

Literature Review

1) Theoretical Framework and Conceptual Clarification

The emergence, nature and the role of the State and law have received the attention of many yet they are often seen from different perspectives. While Hobbes (cited in Understanding Society, 1972 p. 38), Apará (1982, p. 1), Hume, Bodin, Augustine, Aquinas (cited in Lloyd, 1964 pp. 15, 17 and 21) and Maude eulogize them as the bulwark of society from the anarchic, 'brutish nasty and short' state of nature where the Shastran 'logic of the fish' of 'might makes rights' would reign supreme; Hegel expound them as the foundations of civil society. And while Rousseau (cited in Plamenatz, 1973 p. 45), Plato (cited in Lloyd, 1964 p. 11), Tolstoy, Godwin (cited

in Woodcock, 1977 p. 117 – 124), Kropotkin (cited in Apter and Joll, 1971 p. 20), Proudhon (cited in Krimerian and Perry, 1966) and Bakunin (cited in Vizetelly, 1972 p. 21 -39 and Lloyd, 1964 p. 19) disdain them as the weirdest and greatest ‘engine of despotism and oppression’, indeed the taproot of all social evils plaguing humanity. But Marxists, appealing to the ‘immanent forces of history’ (d’Entreves, 1967 p. 51) conceive them as products of society at certain stages of evolution which will wither away in a future communist society; as thus, they debunk their roles, see in them the bane of human society and fetter to the transition of society to post-history.

Marxist theory of the State has bred naturally, and particularly, passionate controversies. Indeed as Lefebvre (cited in d’Entreves) notes, ‘no other aspect of Marxist thought has been so greatly blurred, distorted and befogged’ and as Bukharin (1953 pp. 65 -66) puts it, ‘in no sphere of social science has so much idealistic and even mystical fog gathered than in the doctrine of the State that “citadel of the concentrated power” of the ruling classes.’ The notion of its, ‘eternity... obligatory character... universality and extra-historical nature’ have been and still are prevalent dogmas in bourgeois state theories today’ (Korstantinov, et al 1979 p. 295)

2) Definition of the State and Law

Though never well expounded in a systematic form (Miliband, p. 128) nor was the proposed plan on the modern state carried out (Duncan, 1973 p. 139) Marxist political theory ‘has acquired a certain notoriety’ of the new breed of social theories which broke away from the traditional, classical political philosophy in the 19th century (Harris, 1980 p. 251) and ranks among the most widely accepted today (Tucker, 1969 p. 54). Indeed if Marx had not been more than a mere purveyor of phraseology, he would have been dead by now (Shumpeter, 1970 p. 5). What causes difficulty, however, is the attempt at defining and analyzing Marxist basic concepts. Croce, 1979 p. 142) comments: Marx more ‘eager for knowledge of things...attached title weight to discussion of concepts’. Duncan observes that ‘by their works, rather than their definitions should they be judged’. Marx himself asserts, ‘De prime abord I do not start from concepts’ (cited in Corrigan et al, 1978 p. 16). However, Marx and Engels were critical of the bourgeois state and law (Carter, 1972 p. 100). Accordingly, these pages shall not find comfort in theories associating the State with ‘theological and metaphysical essence’ (Bukharin, 1979 p. 31) nor shall recourse be had to notions that cloth the law with universal and sacral qualities.

A tripartite definition can be identified: Marx, in ‘The Critique of the Gotha Program’ (cited in Tucker, p. 56) defines the State intrinsically as ‘the government machine, or the State in so far as it forms a special organism separated from society through the division of labour’. In the ‘Communist Manifesto’ (cited in Carr, 1970 p. 78) Marx defines law intrinsically: ‘your law is only the will of your class made into law for all, a will whose essential character and direction are determined by the economic conditions of life of your class’. This agrees with Davies (cited in Oyeode, p. 15) who opines that the constitution and the law of a people are expression of the social consciousness of their leadership. The State and law can only be understood

as social phenomenon (Bukharin) rooted in given modes of production in society which become sterile when divorced from their social milieu (Elias, 1972 p. 117).

3) Complementarities of the State and Law

The legal conception of the State in terms of the law and vice versa is a vicious circle. It lacks sociological foundation and it is suspended in mid air (Bukharin). The State as such does not exist; its existence stands for a group of particular institutions that constitute its reality (Miliband, p. 149). These are the army, police, court, legislature, sovereign, prison, bureaucracy etc. The law is one of such institutions. The complementarities of the State and law are beyond imagination. A State devoid of law ceases to be properly so-called. For Marxists, 'law is the cutting edge of the State' and 'clearly inseparable' from it (Opolot, p. 109). The court, Lenin (cited in Rene, 1978 p. 199), asserts 'is an organ of State power. The Liberals sometimes forget this. For Marxists, it is a sin to do so'. Moreover, such principles as separation of powers are, to Marxists, arrant bourgeois theoretical fetish for in reality there is concentration of power (Rene, p. 168).

Laws, such as the Factory Act and the Ten Hour Bill, are products of civil society and not the niceties of parliamentary draughtsman-ship and fancy (Evans, 1956, p. 178). They receive their official proclamation by the State as the result of long teething class struggle (Corrigan and Sayers, p. 24) and must operate in the interest of the State (Duncan, p. 32) whose interest in turn, are those of the economically dominant class in society (Bukharin, p. 32). It must be firmly and forcefully stated that although history has thrown up situations where 'the institutions of state power were not all in the tight grip of one class' (Onyeoziri, 1987 p. 13) 'state power is not like yam that can be cut into pieces and distributed around. A class either controls it in full or does not at all'. It 'goes beyond ... mere presence in parliament or control of government. It includes crucially, the control of all coercive institutions' which, according to Marx, 'are the ears, eyes, arms and legs enabling owners of property to act' (Madunagu, 1978 p. 8 and Adelakun, 1988 p. 6). However, Wittfogel (1957 p. 239) in 'Oriental Despotism' termed Marx, Madunagu and Adelakun proposition a 'political myth'.

4) Marxist State Model

The three main currents which, according to Churchward (1968, pp. 88-89), run through the fabric of Marxist political theory are that the State is a mediator in class struggle, and as it mediates, it does so as an organ of the dominant class, and when, at a stage in the class conflict, classes disappear or coagulate into the proletariat, the State will wither away. Regarding the third tier of this proposition, Marx, in 'The Alleged Splits in the International' (cited in Mclellan, 1971 p. 194) states: '... as soon as the goal of the proletariat movement, the abolition of classes, shall have been reached, the power of the State ... will disappear and governmental functions will be transformed into simple administrative functions'.

In 'Anti Duhring' can be found the celebrated dictum where Engels states: 'The interference of the state power in social relations becomes superfluous in one sphere

after another and then ceases of itself. The government of persons is replaced by the administration of things and the direction of the processes of production. The State is not “abolished” it withers away’. In the ‘State and Revolution’ (cited in Fried and Sanders, 1964 p. 479) Lenin states: ‘... from the moment all members of society ... have learned to administer the State themselves ... from this moment the need for government of any kind begins to disappear altogether...’

The vision of a stateless society where the coercive and exploitative aspects of political power will be non-existent dates back to ancient times (Avrich, 1973 p. 9) and particularly traceable to early French and Utopian socialism (Berki, 1975 chap. 3). What marks Marxism, the unquestionable leading ideology and political force that gave socialism its stature in a world-wide context and not a theory ‘dug out of a half-forgotten limbo of past philosophies’ from those early periods is, its scientific character (Fried and Sanders). Marxist conception of the withering away of the State and law is one reached after a scientific analysis of what existed is existing and shall based on the existing exist. As Berki puts it forcefully, it is ‘a mighty colossal “synthesis”, an imposing unification of diverse elements’ – the synthetic combination of French socialism, English political economy and German idealism; a ‘culmination of seven different trends of thoughts and social movements’. More so, it does not embrace imaginative visions of future society but allows it to depend on economic and historical circumstances while engaging in ‘uncompromising critical evaluation of all that exists’ (Madunagu, 1980 p. v).

5) Critique of the Model

The concept of the withering away of the State and law being the political departure of Marxism has however remained controversial as ever. The debate has not been the preserve of Marxists but non-Marxists alike. In ‘The International’, Marxists debated polemically with the Anarchists on what the State was to become after the revolution. Indeed Marxist statements were mainly dialogues refuting Anarchism which turned Marxism inside out. Anarchism saw the root of all evils in the State which must be abolished in all its meaning (Tucker, p. 89) while Marxism saw it more in civil society than the State whose immediate abolition meant the destruction of the only organism – the ‘principal spoil’ – of proletarian rule to hold down the bourgeois and carry out economic revolution of the society (Tucker, p. 88).

Although Lloyd (1964, p. 41) points out that the dictatorship of the proletariat is a ‘paradox’ so abhorrent to the Anarchists he seeks to see Marxism as synonymous with ‘modern Anarchism’; and to Plamenatz (p. 41) and by some extension Joll (1971, p. 221), the doctrine of the withering away of state is ‘essentially anarchistic; it is the anarchist ingredient’ and moment in Marxism. Unflagging welter of authorities confute Lloyd, Plamenatz and Joll. Hobsbawm (1973, pp. 57 – 58) and MacDonald (1962, p. 362) are subtle in demonstrating that although Marxists and Anarchists aim at libertarian socialism, Anarchists do not believe in ‘any transitory apparatus’ and are for decentralization, non participation in ‘formal political processes’ against Marxian democratic centralism. Corrigan and Sayer, Churchward, and Mclellan affirm that

Marxism does only mean that ‘political power’ will lose its political class character and not the ‘disappearance of any public power’.

As Makepeace (p. 26) observes, ‘Adamiak, following Bloom (who have both written on the withering away of State) considered the relative positions of Marx and Engels on this matter and concluded that they were similar’ and consequently, that they were not Anarchists nor neo-Anarchists, and they envisioned ‘that the State was to play a very important part in future society’. Lenin (cited in Shub, 1965 p. 445) puts it succinctly thus: ‘If we are not anarchists, we must admit that the State, i.e. coercion, is necessary for the transition from capitalism to socialism’ but ‘opportunists keep saying that the proletariat needs a state but they forget to add that the proletariat only needs a dying state, that is, a state that immediately begins to wither away and cannot help withering away’ (cited in Melotti, 1977 p. 144). Ensuing from these authorities, there will be ‘public power’ minus ‘political power’ in communism.

6) Critique of the Philosophers

A second pernicious phenomenon has been the knack for a ‘radical differentiation of Marx from Engels’ by a ‘busy cottage industry of critics’ making a ‘scapegoat’ of Engels as the fount of positivist heresy in Marxism (Gouldner, 1980 p. 251; Seliger, 1977 p. ix and Mosse, 1977 p. 4). Engels, the cotton miller, who won no college degree, is held to be naïve and gauche and according to Lichtheim (cited in Gouldner), the arch-father-figure of pro-reformism that finds its hallmark in Kautskyism. A manufacturer’s son, who enjoyed music, wine and women, it is argued, ‘is not a congenial figure to revolutionary or academic ascetics. Thus, according to Colletti (cited in Gouldner) there is ‘a gulf between the vigor and complexity... of Marx and the popular vulgarization...dilettantism of Engels’. These, according to Gouldner are ‘historically dubious and unjust’. He submits emphatically with Trotsky, who won no college degree also that Engels, the man at the centre of the class divide, is undoubtedly one of the finest, best integrated... personalities in the gallery of men’. A “theoretical genius” according to Althusser (cited in Gouldner)!

Yet, this cottage industry of personality calumny has dovetailed into the question of the State. Aviner (cited in Duncan pp. 145 – 146) followed by Schapiro (1972, pp. 82 – 83) has conjectured a divergence of Marx and Engels terminologies on the withering away of the State and law. They argue that while ‘a philosophically profound Hegelian Marx used “abolition” and transcendence – philosophical terms with dialectical overtones (Makepeace) – agreeable with the natural sciences, ‘a more vulgar and shallow Engels’ (Duncan) used ‘withering away’ and ‘dies out’ (MacLellan) ‘biological simile’ (Makepeace) – agreeable with the ‘social sciences’. Thus, as Duncan puts it: freeing ‘Marx from the incubus of Engels’. The disingenuousness of this debate is clear. To Duncan, Avineri sharpens the contrast too much while to Marfarlane (1975, p. 167), Marx and Engels, having ‘collaborated so closely’ could not have had different views of the State or ‘theories without noticing’ them. But in this drab debate lies the essence of Marxist analysis. While ‘abolition’ means the abolition of the

bourgeois state in socialism, 'transcendence' and 'withering away' means the dying and disappearance of the proletarian state in communism.

As MacDonald (p.427) and Lefebvre (p. 171) in consonance with Harris (p. 256) opine, the dictatorship of the proletariat 'points to the period of transition between the destruction (abolition) of the existing State and the setting up of the State that will wither away'. Althusser (p. 135) was close to this when he asserted that 'the proletariat must seize State power in order to destroy (abolish) the existing bourgeois state apparatus ... then in later phases, set in motion a radical process, that of the destruction (withering away) of the State'. Lenin was explicit: '...withering away' refers to 'the remnants of the proletarian state after the social revolution' and, to Macfarlane (p. 167) and James (p. 121) after the bourgeois state has been smashed.

In the 'State and Revolution' (cited in Fried and Sanders, p. 473) can be found the exact expression of this argument: 'the expression "the State withers away" is very well chosen for it indicates the gradual and the spontaneous nature of the process'. The spontaneity is the abolition of the bourgeois state while the gradualism is the withering away of the socialist state. The abolition of the state has meaning only for communists as the necessary result of the abolition of classes, with which the necessity of the organized force of one class for the oppression of another falls away of itself (Makepeace, p. 27).

7) Economic Interpretation of History

The canon – economic interpretation of history – 'the master key to all the secrets of history' (Schumpeter, 1970 p. 47) recommends that attention should be directed to the economic basis of society in order that the forms and mutations of the latter (termed the superstructure) may be better understood (Croce, 1979 p. 69). Descriptively, the State and law are parts of the superstructure. In the 'German Ideology' (cited in Corrigan, et al 1978 p. 7) Marx puts it thus: 'the conditions under which definite productive forces can be applied, are the conditions of the rule of a definite class ... whose social power, deriving from its property, has its practical – idealistic expression ... on the form of the state'. In 'Defence of the Rhineland District Committee of Democrats' (cited in Ilumoka, 1986 p. 2), Marx expounds the descriptive and super-structural nature of law as follows: 'Society does not depend on law. The law depends rather on society. It must be an expression of society's ... interests and needs arising from the material mode of production... I have here ... the code Napoleon, but it was not the code which created ... bourgeois society... As soon as the code ceases to correspond to social relations, it is no more than a bundle of paper'.

The State and law are therefore no 'isolatable thunderbolts' outside civil society but mere official and legal expression of it. But as Ekekwe (1980, p. 3) puts it, Marxists are 'not dogmatic in positing a one-to-one correspondence between ideas and economic conditions' as Aguda (1985, p. 4) asserts; such assertion is vulgar Marxism (Ilumoka, p. 5) and it transforms the proposition 'into a meaningless, abstract, empty phrase' (Makepeace, 1980 p. 16). Aguda had argued that Marxist theories assume that the disturbances of social order are caused only by economic circumstances. The reflec-

tion of economy struggles as legal principles is topsy-turvy. It is not direct. The law however must not only correspond and express general economic relations it must be an expression whose inner contradictions would not allow it to become naught (Engels (1890) cited in Faris, 1977 p. 101). This has led to the debate as to whether the law has a relative autonomy. But be the result of this debate as it may, the law, as E. Thompson (cited in Corrigan and Sayer, 1981 p. 35) states convincingly, is 'deeply imbricate within the very basis of productive relations which would have been inoperative without this law'.

To Marxists, it was in division of labour that man became divided (Tucker, 1972 pp. 188 – 189). It was the root cause of all social evils in society it breed private property, alienation, class and class struggle, state and law. Classes, the State and law are so intricately connected that they cannot be explained outside of the other (Ekekwe, p. 1). Thus, although conflicts between classes are rooted in the struggle for the appropriation of surplus value in civil society, they are fought as political battles also. In 'A Contribution to the Critique of Political Economy', Marx puts it as follows: '... a distinction should be made between the material transformation and the legal, political ... forms in which men become conscious of this conflict and fight it out'. According to Ilumoka (p. 3), the Land Use Act in Nigeria is a locus classicus in which the Feudalists and the Nigerian bourgeois became conscious of the conflict between them over the control and administration of land and landed resources and they fought it out through the instrumentality of the State and law consequently making the Governor of a State in charge of land holding in trust for the citizens (bourgeois industrialists) of the State. Thus, although the State and law arose to check class antagonism (and hence above civil society) they soon became no more than the instruments for the protection of the property and privileges of the economically and politically dominant ruling class (Marfarlane, 1975 p. 167).

From birth to death, life is beset with innumerable forces. Of these, 'the most numerous ... stringent... frequently experienced are those associated with the notion of a mysterious but omnipresent entity, of an indefinite but at the same time imperious and irresistible power: the notion of the State' (d'Entreves, 1967 p. 1). In unmistakable terms, the State and law receive their most conspicuous coercive character as organized political power and as parasitic excrescence. However, that the State is an evil, a 'super-naturalist abortion of society' is indisputable. What excites some debate is a question of how and in whose favour the State imposes and enforces order (Ekekwe, p. 10).

8) Socio-Economic, Political Basis of Capitalist State

Marxists suggest that the modes of production are compendia of social relations including contradictions that give rise to class struggles and they account for the emergence of the State and law not the Hegelian inverse which is still being put forward today (Lefebvre, 1968 p. 123 & 135). The economic structure of capitalism forms the basis of its socio-political superstructure. To Bukharin (1935, p. 46), it is a 'society working a machine technique of which the economic structure possesses

peculiar distinguishing marks: It is a society producing for the market (commodity production); in which the means of production belong to a special class purchasing labour power (the capitalist bourgeoisie) and which is in opposition to the antipode, deprived of the means of production and selling its labour power (the proletariat).

Capitalism is essentially private property and ownership of means of production. Its spirit is profit maximization and accumulation hence the Marxist cliché, 'accumulate, accumulate, that is Moses, and all the Prophets!' It is also plagued by varied contradictions (such as propertied and property-less classes, production by labourers and reward to capitalists, division of labour and alienation of labour, over-production and under-consumption, free competition and monopoly; economic boom and mass poverty, abundance of natural resources and abject deprivations etc). The social character is inequality among classes – defined as the positions of people in relationship to the means of production and appropriation (Lenin, cited in Stainslaw 1979, p. 83). The inequality is founded on the core that the truest essence of man is determined not by man's official-political essence but man's social essence in society. That is, man's economic bearing.

Civil society is thus polarized into the bourgeoisie, the propertied class and the proletariat, the property-less class. The conflict between these classes rends civil society towards the overthrow of the bourgeois state. The configuration of the bourgeois state is tied up with Marx's 'Critique of Hegel's Philosophy of Right'. While Hegel acknowledges that division between the State and society, and finds the resolution of the bifurcation in the State as 'society's ultimate reality' Marx sees this as a 'mystification' for the state and law as reflexes of irrationality cannot express transcendent rationality nor are they inherent in society. Thus, if the 'real man is the private man of the present constitution of the State'. It follows that the State, composed of private men in its organs cannot express society's ultimate truth and interest for rather than representing the general interest, it represents its particular private interest that is no more than the interest of the economically and politically dominant bourgeois class and thus, the interest of private property. The State in capitalism therefore is the dictatorship of the bourgeoisie.

9) Mission of the State and law

The State and law are much more than manifest apparatuses of coercion; their repressiveness does not emanate from their intrinsic or coercive definitions, but from the very functions that define them as State qua State and Law qua Law. The bourgeois state does not partake in economic activities; that is the exclusive preserve of private units. State's function lies in the creation and maintenance of the conditions conducive for capital accumulation (Ekekwe, p. 11). That is, 'hasten, as in a hot house' the process of transformation and transition of the feudal mode of production into the capitalist mode (Corrigan and Sayer, p. 22). It does this in a number of ways. For instance, the Rights of Man and the Bills of Right are the milestones of bourgeois political achievement, but their length and breadth are security, liberty and right to private property.

The State's and law's golden mission is to safeguard right of ownership. By legitimizing private property, they thereby sanctify it to the extent that 'the idea of natural rights ... had its origin in conservative forces anxious to sanctify property ... as the fundamental human right over-riding even the right to life' (Lloyd, 1979 p. 79 & 282). While to Tucker (p. 54), the State's coercive power is 'wielded in the interest of private property' to Bukharin (p. 32) it is the most common organization of the ruling class, the basic function of which is to defend and extend the conditions of exploitation of the enslaved classes. As Marx puts it in the 'Communist Manifesto' (cited in d'Entreves, p. 50), 'your state is a committee for the common affairs of the bourgeoisie'. The 'police man of Europe', the Tsar, is 'the watchdog of private property'. Equally, the law does no more than 'giving coherent form to' the 'immanent principles' governing private ownership in the means of production.

Central to the foregoing is the class character of the State and law which are class weapons, political power for the oppression of the proletariat by the bourgeoisie. The police is partisan. While it treats the proletarian class 'rudely and brutally', the bourgeoisie receive preferential treatment (Duncan, p. 149). Hence to James (p. 121), it keeps 'the working poor in subjection' and protects 'the rich against the poor'. The State, in essence, is a conservative force for the preservation of the social status quo of private property. It does this though unconsciously, for the precise reason that it is the creation of the contradictions it fights. According to Tucker (p. 63), it is the supreme defence mechanism of a threatened social structure, and a mechanism that is regularly used violently because the internal threat to the system ... is manifesting itself in violent ways'. It is, therefore employed by the bourgeoisie to prevent 'the underlying antagonism in society from exploding into revolutionary violence' (Tucker). Any threat to the bourgeois society is met by the State with prompt reprisal. Hence, it was a chief censor of Marx's articles for the *Rheinische Zeitung*.

As Laski (1976, p. 54) rightly observes, the modern state maintains a vast organization for prosecuting offenders. Yet, justice is not obtained. 'There is one law for the rich and another for the poor whenever ... defence is an item ... If a poor person steals, conviction follows rapidly, if a rich person steals, he is usually bound over on the plea of nervous shock. If a taxi driver is proved to drunk in charge of a car, he pays the penalty, but it is notorious that Magistrates do not like to convict the rich young man ... since he will ... appeal and get his case reversed. What is disorderly conduct in resisting police in White-chapel is not seldom regarded as an ebullience of high spirit in Mayfair' Also, 'he conspiracy and sedition doctrines have been utilized throughout the 19th century in a way and manner – to repress popular and often violent agitations for socio-economic and political changes – that made the courts mere handmaidens of the ruling class in gallant defence of their economic locus against the violent perennial challenge by the under privilege.

Marxists see in the State and law elements of deception. Throughout history it had been a camouflaged dictatorship of a minority class of owners of property. The majority has been deceived by representative democracy into electing rulers who rule on behalf of their economic interests (Gabriel, 1988, pp. 15–16 & Spicer, 1981 p. 49)

The deception also receives St. Simonian imprint. When rulers die, society wails but subsists but when workers die, society does not wail. It dies (Tucker, p. 69). Thus the political state to civil society is like heaven to earth, thereby bifurcating man into member of civil society and citizen of the State. As result, political struggles become economic struggles with ideological connotations. Furthermore, purporting to be above society, the State poses as an arbiter in extra and intra class struggles; purporting to be neutral, it performs social, classless functions ‘inevitably in class distorted ways, for class ends with class consequences (Tucker, p. 69). Claiming to be autonomous and catering for the general interest, it ostensibly, in the last instance, organizes and ensures bourgeois hegemony.

The cornerstone of bourgeois legal theory – the rule of law – preposterously presupposes individuals as free agents, bearers of right and duties and equal before the law. These presuppositions, to Marxists, are arrantly idealistic and fraudulent for they view the individual more in abstract than concretely as a member of civil society. It ignores the material conditions that affect the relationship between individual in a contract of employment for instance. Hence, to Marx, equal rights are rights of inequality in content and as Heinecke (1987, p. 90) rightly puts it, ‘what goes on within the polity is theoretically divorced from the economy, making the theory beautiful in theory but ugly and dehumanizing in practice.

10) Historical Fate of Bourgeois State

The State and law are creations of the ‘irreconcilable contradiction and antagonisms that developed in human society with the emergence of division of labour and classes and class struggle to check and ‘keep antagonisms within bounds and ensure that conflicting economic interests do not assume an open form and destroy themselves (Abashi, 1987 p. 90). Though Marx (cited in Heinecke, p. 126) identified eight and seven classes in ‘Revolution and Counter-Revolution in Germany’ and ‘Class Struggles in France’ respectively in a developed bourgeois society, two emerge – the bourgeoisie and proletariat. The antagonisms between these classes are basically economic but fought simultaneously in the political and ideological spheres. Economically, it is as to which class controls the means of production and appropriation of social value. Politically, it is as to which class controls the state apparatuses, including law, to guarantee its economic and political consciousness. To Marxists, the state of the struggle would ultimately assume a violent dimension in which the proletariat would seize political power for its class through a revolution.

Marxists also appeal to humanistic principles on why the bourgeois state is smashed. The argument is to the effect that while the majority – workers – ‘whose problems cry out to heaven in Manchester’ live in hardship and poverty, the bourgeoisie – the idle few – who ‘put some of what they pocketed into industry to expand production, and use the rest to finance their lavish life style’ live in ‘riches and luxury’. This arrangement, they submit, is unjust and ungodly and has to be abolished (Heinecke, p. 126).

Inherent in Marxism is a trend often termed 'abolition of capitalism from within.' It is essentially 'economic reductionism' and allies tremendously with the preconditions of a socialist revolution and society. It is to the effect that the economic base of society will be scientifically and technologically revolutionized that the basis of capitalism would become eroded. Accompanying this development is a high level of political awareness of the proletariat that would enable it to transcend the bounds of narrow bourgeois individualism and right. At such a stage, the State and law as political power for the domination of the bourgeoisie over the proletariat will become superfluous (Ayu and Ibrahim, 1986 p. 6).

11) Economic Base of the Nigerian Bourgeois State

The Nigerian State was based on an economic structure designed by the Royal Niger Company aimed at the exploitation of the resources of the space through the colony of Lagos. Another significant influence that gave way at the time was the Sokoto Caliphate which considered the space as its inheritance. The finding of commercial oil in the 1960s transformed the economy from the feudal-colonial one to a petro-state shortly after the civil war. Ninety percent of the resources and payment of state bills depend on oil. The ownership and control of oil is vested in the Federal government which has a national oil company (Nigerian National Petroleum Corporation Limited) that runs joint ventures with the seven-sisters (Shell-BP, Agip, Exxon-Mobil, Gulf, Chevron, Gulf, and Texaco). They practice production sharing contracts that are mainly in favour of the multinationals and the State.

Currently the business environment is being made uncomfortable and harsh by the Nigerian bourgeois state. From nationalization and indigenization policies to outright state resource control, marginal field acquisition, oil theft, vandalism, kidnap and sabotage, the multinationals are being edged out of business in Nigeria through bourgeois state policies and laws that are discriminatory to the oil majors. Oil blocs hitherto owned by the majors are now being given out to the national bourgeoisie. These indigenous bourgeoisie are the Tinubu family which has edged out Agip through purchase (Adewale Tinubu (Oando Plc 1.8 billion) as soon as he came to power; the Danjuma family (Sapetro \$750 million); the Alakija family (Famfa Oil \$1 billion); the Dangote family (Dangote Refinery; \$12.56 billion); Arthur Eze family (Atlas Oranto Petroleum with 22 licenses across 12 African countries), Orjiako and Avuru families (Seplat Oil); Obateru family (Obat Oil Company \$300 million); Azudialu-Obiejesi family (Nestoil); Mohammed Indimi family (Oriental Energy \$500 million); Mike Adenuga family (Conoil \$6.7 billion); Femi Otedola family (Forte Oil \$1.3 billion); Emeka Okwuosa family (Oilserve Limited); Yinka Folawiyo family (Yinka Folawiyo Petroleum Company Limited); Benedict Peters family (Aiteo Group); Bola Shagaya family (Practoil Limited); Tunde Afolabi family (Amni International Petroleum); Elumelu family (Heirs Oil & Gas Limited); Joe-Ezeigbo family (falcon Corporation Limited); Alhaji Dantata family (MRS Oil Nigeria Plc); Tope Shonubi family (Sahara Energy); Winifred Akpani family (Northwest Petroleum & Gas Company Limited) and Gabriel Ogbechie family (Rainoil Limited) (Chisom, 2024). Most of these oil

blocs, if not all, were handed out to military cronies during the Babangida and Abacha military regimes which are noted for massive corruption while pretending to be on national assignment for Nigerian masses called 'Fellow Countrymen'.

The legal regime on the economy shows constitutional-paper ownership of oil by the State, multi-national ownership by operations and production sharing contracts and national bourgeois ownership in emerging appropriation templates. The State guarantees the conditions through which the common weal of the people is allegedly owned by the State under constitution law but in practical contractual terms the technology is owned by the multinationals while the appropriation of the national wealth is done by the national bourgeoisie which adds little or nothing to the economic production equation but sits atop the common wealth of the Nigerian State (as middlemen). This is capitalist imperialism: a three pronged exploitation of the labouring class by the national bourgeois state, multinational companies and the national bourgeoisie.

The economically dominant ruling class replicates itself in the executive, legislature and judiciary. The Independent National Electoral Commission gave frivolous excuses such as technological glitches to declare that President Tinubu won the 2023 general election. The Supreme Court rose and ruled in favour of the President in spite of the fact that it was popularly claimed that the 'populist Obi' won the election. Indeed Mallam El'Rufai, former Governor of Kaduna State, has displayed the results of the rigged election indicating that Mr. Obi won on the 'social media'. But as soon as the President was sworn into office, the first law he enacted verbally from the rostrum in an acceptance speech was to declare 'oil subsidy' illegal without palliatives and went ahead to float the national currency on the parallel market leading his labouring countrymen into hardship and multi-dimensional poverty. The price of fuel rose by 300 percent and businesses collapsed. He capped it all by granting pardon to jailed drug barons, corrupt politicians but failed to extend the clemency to separatists. In fact, a Federal High Court presided over by Mr. Justice Omotosho has convicted Nnamdi Kanu for Igbo-Biafra separatism on charges considered by right activists as trumped up while the pre-administration critics of Tinubu as world-wide drug-baron (like Mr. Reno Omokiri) have been nominated to the National Assembly for ambassadorial portfolios.

The National Assembly and the Supreme Court have been characterized as the rubber stamp of the Administration. The Supreme Court has been audacious to declare the President of Senate, Senator Godswill Akpabio, elected as a Senator even when he was never on the ballot. It has also declared Hope Uzodinma as the Governor elect of Imo State when he came 4th at the gubernatorial polls. The Akpabio Senate has approved loans running into trillions of dollars that the Administration has cared to take including for the purchase of Presidential jets with spurious loan handouts to students and hangers-on. All these, while the labouring class wallow in penury and poverty with minimum wage pegged at N70,000.00.

On the political terrain, the Tinubu Administration has orchestrated a campaign of the annihilation of political opponents and parties. The administration has clamped

down Mr. Malami (SAN and former AGF and Minister of Justice) in EFCC's custody for allegations of sponsoring Boko Haram and ISWAP, the two dreaded militant Islamic groups in northern Nigeria. The EFCC also has in its custody, Mr. Chris Ngige, a former two time governor of Anambra State and immediate past Minister of Labour for corruption charges. Tinubu unilaterally deposed Mr. Fubara as the sitting Governor of Rivers State for six calendar months and imposed a Military Officer, Gen. Ibas from Cross River State on citizens of Rivers State. Mass defection has occurred from Peoples Democratic Party (PDP) to the All Progressive Congress (APC). Political opponents are hounded by the Economic and Financial Crimes Commission EFCC and when an opponent defects, his corruption charges are dropped. The entire state party structure of PDP in Delta State had to defect to the APC because the former Governor of Delta State, Dr. Okowa, was framed by the EFCC for the diversion of N3.1 trillion in state funds. A former Central Bank Governor, Mr. Emefiele who tried to scuttle Tinubu's election through rebranding the national currency has been in jail (since Tinubu's assumption of office) forfeiting \$4.71 million, N830 million and property of N12.18 billion. The Administration's infiltration into opposition parties is actuated toward weakening them before the 2027 general elections leading to the formation of the African Democratic Congress (ADC). Two of the four genres of authoritarian regimes conceptualized by Samuel Huntington in 'The Third Wave' are personal and one-party regimes. It is one of Chijioke Njoku's postulations that 'new democracies often revert to dictatorships' and Jeffrey Herbst prognosis on Nigeria is that it 'does not work and probably cannot work'. Olagunju (2025) who cites Huntington, Njoku and Herbst in 'Time for the Abachas to rejoice' believes that 'a democratic system that cannibalizes opposition always ends up consuming itself'. The disposition of the Tinubu Administration is a dictatorship of the bourgeoisie.

Conclusion

Although the concept of the withering away of the State and law has generated controversy as often being thought to be synonymous with abolition, the withering away of the State refers to the proletarian state after the abolition of the bourgeois state and law. Thus it is classified into two: the first stage is preceded by the abolition of the bourgeois state while the second stage is the withering away of the proletarian state. The concept is developed mainly through the relevant economic modes of capitalism and socialism in line with the Marxist theory of the inseparability of economics from politics and consequently the State and law.

The theory of the dictatorship of the bourgeoisie is applicable to the Nigeria State under the Tinubu Administration. The economically dominant ruling class is in firm control of the economy that is anchored on oil and gas. It has also firmly installed itself in the National Assembly which dances to its tune with legislations that are aimed at the impoverishment of the labouring classes. It has established itself in the judiciary whose decisions are tailored to reinforce members of its class. Its policies and law have been glaringly against the working classes.

Suggestion for Future Research

At the conclusion of this research, the Author was of the humble view that a complimentary area of further research could be to study 'Critique of Marxist Views on Trade Unionism in Africa'.

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